

MINISTRY OF EDUCATION AND TRAINING MINISTRY OF JUSTICE
HANOI LAW UNIVERSITY



**LIMITATIONS TO COPYRIGHT AND RELATED RIGHT -
THEORETICAL AND PRACTICAL ISSUES**

Specialization : Civil and Civil Procedure
Code : 9.38.01.03

PhD THESIS SUMMARY

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PREAMBLE

1. Urgency of the topic

The 4.0 industrial scientific revolution with the characteristics of "Internet of Things" has been posing new requirements for regulations on the limitations to copyright and related right. In the past few years, Vietnamese laws on such matter have been improved to realize the policy that balances the interests between the creators and the public, ensuring some basic civil human rights as well as meeting the requirements of international economic integration. However, the process of applying provisions of limitations to copyright and related right exposes some inadequacies and limits. In practice, disputes concerning the determination of the scope protection of copyright and related right appear increasingly common but there is no satisfactory and convincing resolution mechanism, affecting the legitimate interests of related entities. Meanwhile, there has not been any scientific works that systematically and comprehensively mentions the issue of limitations to copyright and related right. Therefore, the research on the topic *"Limitations to copyright and related right - Theoretical and practical issues"* has theoretical significance and practical value.

2. Research goals and tasks

2.1. Research goals: (i) To form the fundamental theoretical issues on the limitations to copyright and related right as a basis for making laws and solving problems that arise in practice; (ii) To evaluate scientifically and comprehensively the regulations of

current Vietnamese laws on limitations to copyright and related right, to analyze inadequacies and limits in legal status and the practical application of regulations on the limitations to copyright and related right; (iii) to propose some solutions to perfect the regulations and improve the effectiveness of applying the regulations on limitations to copyright and related right.

2.2. Tasks: (i) Clarify theoretical issues about the limitations to copyright and related right; (ii) Analyze and compare provisions in international treaties and domestic laws of some countries as well as their practical judicial experience on limitations to copyright and related right; (iii) Comment and evaluate the scientific, systematic characteristics, feasibility, and compatibility of Vietnamese legal regulations and point out some difficulties and problems in the practical application of regulations on limitations to copyright and related right; (iv) Identify general trends and requirements for perfecting the legal provisions and improving the effectiveness of applying the legal provisions on limitations to copyright and related right in Vietnam.

3. Object and scope of the study

3.1. Research subjects

The Thesis focuses on studying the scientific theoretical basis that forms the regulations on limitations to copyright and related right; Vietnam's intellectual property legal system, especially regulations on limitations to copyright and related right; doctrines and regulations on limitations to copyright and related right in international treaties and domestic laws of some countries.

In addition, the Thesis studies the current status of applying the laws on limitations to copyright and related right at state management agencies, judicial agencies, intellectual property enforcement agencies and other entities participating in the process of applying the laws in Vietnam and some countries.

3.2. Research scope

- Regarding Vietnamese legal provisions: The Thesis focuses on the Vietnamese civil provisions, intellectual property regulations on limitations to copyright and related right through the period from 1994 to 2004, from 2005 to 2009 and from 2009 up to present; relevant current legal provisions.

- Regarding international provisions: The Thesis researches regulations on limitations to copyright and related right in some multilateral international treaties run by WIPO and other agreements that Vietnam is a member.

- Besides, the Thesis studies the practical application of the laws on limitations to copyright and related right in Vietnam, some theories, legal regulations, judgments and experience in applying the laws to resolve actual disputes in some countries.

4. Methodological foundations and research methods

4.1. Methodological foundations

The Thesis uses dialectical materialism, historical materialism of Marxist-Leninist philosophy, Ho Chi Minh's thought and the views of the Communist Party and the State of the Socialist Republic of Vietnam on encouraging creative activities and ensure human rights; the fundamental theory of intellectual property protection

like the principle of balancing the interests between the creators and those of the public.

4.2. Research methods

The Thesis uses the following methods: Analytical and commentary method; Synthetic method; Comparative method; Methods of interviewing, consulting experts, discussing with managers, lawyers, and practical practitioners in the field related to the content of the Thesis.

5. New contributions of the Thesis

- First, the Thesis approaches theoretical issues of copyright and related right protection from the perspective of the exclusive rights provided by laws for creators.

- Second, the Thesis devises a scientific concept of the limitations to copyright and related right. It is the first thesis analyzing four characteristics of limitations to copyright and related right. In addition, the Thesis also deeply analyzes the theoretical basis of the regulations on limitations to copyright and related right in the philosophical view, the doctrines as well as the requirements of ensuring basic human rights. Moreover, the Thesis also defines the concept, content and structure of regulations on limitations to copyright and related right as well as the pros and cons of each structure. Besides, the Thesis analyzes the development of regulations on limitations to copyright and related right in international treaties to which Vietnam is a member.

- Third, the Thesis analyzes the regulations of the Vietnamese legal system on limitations to copyright and related right in terms of the basis and purpose of

regulations, updates the instructions and explanations of competent state agencies, thereby discovers and objectively evaluates the inadequacies and limitations in such regulations and highlights the shortcomings and difficulties in the legal application.

- Fourth, the Thesis also raises the orientations and guiding viewpoints in legal policies in general and the goals that need to be ensured in the process of perfecting legal regulations on limitations to copyright and related right in particular.

- Fifth, the Thesis proposes recommendations to improve Vietnamese intellectual property laws on limitations to copyright and related right as well as some solutions to advance the effectiveness of applying such laws.

6. Theoretical and practical significance of the Thesis

The research results of the Thesis contribute to forming and deepening the theoretical foundation on the limitations to copyright and related right as well as the laws on such matter. The most important scientific and practical significance of the Thesis is to help the right holders to determine the scope of their protected rights which is a basis for determining legal use and infringements in practice. In addition, the Thesis also proposes recommendations that have reference value in the process of making and perfecting Vietnamese laws on limitations to copyright and related right, and have reference value for creators, users as well as state agencies in determining and evaluating permitted uses or copyright

and related right infringements. Besides, the Thesis is a useful reference material for leaders, legislative, executive and judicial agencies as well as management offices, researchers, students, and lecturers specializing in laws and in majors related to creativity and innovation in the enforcement of copyright and related right laws.

7. Thesis structure

In addition to the introduction, the overview of the research, the list of references, the content of the Thesis includes three chapters:

Chapter 1: Theoretical issues of limitations to copyright and related right and laws on limitations to copyright and related right;

Chapter 2: Current legal provisions and practical implementation of legal provisions on limitations to copyright and related right in Vietnam;

Chapter 3: Orientations and recommendations to improve laws on limitations to copyright and related right and the effectiveness of their application

OVERVIEW OF THE STUDY SITUATION OF THE TOPIC

1. Overview of the research situation

Up to now, there have been some works and researches about some aspects of limitations to copyright and related right such as introducing and commenting on regulations on such matter, theories related to limitations to copyright and related right and the process of perfecting regulations through the ages, mentioning several disputes related to limitations to copyright and related right as well as difficulties and problems in practical application. However, these works only address the above issues in general, in a separate way or from a specific perspective. There has been no works or research studying deeply and comprehensively aspects of limitations to copyright and related right, especially since the amendment of Intellectual Property Law in 2022.

2. Research problems

- Regarding the concept of copyright and related right, the Thesis will continue to research on the formation of the concept in the historical development of the Vietnamese legal system, explain the basis for granting exclusive copyright and related right for the holders, point out the differences in creative activities of related right holders and copyright holders. Regarding the characteristics of copyright and related right, the Thesis researches the forms of expression protected in copyright and related right, explains the causes and consequences of this characteristic. Besides, the Thesis also points out the characteristics of the establishing mechanism, explains the

basis as well as clarifies the nature and meaning of the copyright and related right regulations. In addition, the Thesis continues to research theories related to the originality of copyright and related right.

- Regarding the concept of limitations to copyright and related right, the Thesis will build the concept in a broad and narrow sense and determine the concept approached in the Thesis. In term of the characteristics of limitations to copyright and related right, the Thesis will build characteristics of the objects that are limited, the subjects whose rights are limited, the subjects who enjoy benefits from the limitations, and the purposes of the limitations, showing the difference between limitations on copyright and related right with limitations on industrial property right and limitations on ownership of common tangible assets. The Thesis also continues to research the theoretical basis of the regulations on limitations to copyright and related right through studying the ancient philosophy on intellectual property, theories related to limitations to copyright and related right as well as the impact of basic human rights on such regulations. In addition, the Thesis builds concepts, determines the content and structure of legal regulations on limitations to copyright and related right.

- Regarding the development of regulations limitations to copyright and related right in international treaties, the Thesis will study the regulations in international treaties to which Vietnam is a member, especially FTAs, explain the regulations and changes affecting international legal regulations on limitations to copyright and related right.

- Regarding the current legal status and practical application of laws on limitations to copyright and related right, the Thesis will research the provisions of current Vietnamese laws on general conditions for applying limitations to copyright and related right, analyze specific requirements for each exceptional cases for non-infringement of copyright and related right according to groups of actions and cases that copyright and related right can be used without asking for permission but paying royalties, thereby gives some comments and assessments on the basis of the limitation, the appropriateness, the feasibility and the science of such provisions as well as inadequacies and inconsistency in legal provisions. Moreover, the Thesis also explores the practical application of current legal regulations on limitations to copyright and related right, points out positive points, achievements and problems and difficulties in the implementation process.

- Regarding orientations and solutions to perfect the laws, to improve the effectiveness of applying the laws on limitations to copyright and related right, the Thesis researches the orientation of regulations on such matter in the world and in Vietnam, learns about perspectives on balancing the interests between the right holders and the public. In addition, the Thesis also proposes some solutions to improve legal regulations and the effectiveness of applying the law on limitations to copyright and related right.

3. Research questions and hypotheses

Research question 1: *Are the concepts and*

characteristics of copyright and related right protection mentioned on previous researches appropriate, scientific and comprehensive? What are the current concepts and characteristics of copyright and related right protection?

Hypotheses 1: The concepts and characteristics of copyright and related right protection have been studied by many scholars, but they are not shown the nature, lack of generality, comprehensiveness, and are not emphasized the economic aspects of copyright and related right which are the basis for interpreting the content on limiting exclusive rights in limitations to copyright and related right. The scholars do not determine the common characteristics of copyright and related right and the specific characteristics of copyright compared to related-right.

Research question 2: *What is the intrinsic concept of limitations to copyright and related right? What are the differences between limitations to copyright and related right and limitations to general ownership and limitations to industrial property right?*

Research hypothesis 2: The concept of limitations to copyright and related right can be understood in a broad and narrow sense. However, within the scope of this Thesis, the concept is approached in a narrow sense which is the restrictions on the economic rights including (i) cases which copyright and related right can be used without asking for permission and paying royalties – exceptional cases for non-infringement of copyright and related right and (ii) cases which copyright and related right can be used without asking for permission but paying

royalties. Limitations to copyright and related right are characterized by the objects that are limited, the subjects whose rights are limited, the subjects who enjoy benefits from the limitations, and the purposes of the limitations.

Research question 3: *What theoretical basis are the regulations on limitations to copyright and related right built on?*

Research hypothesis 3: The views of philosophers like John Locke, George Wilhelm Friedrich Hegel, the doctrine of interest balance, the doctrine of exhaustion of intellectual property right, fair dealing doctrine, fair use doctrine and freedom rights of citizens have a strong impact and they are the foundation affecting the regulations on limitations to copyright and related right.

Research question 4: *Are Vietnam's legal regulations on the exceptional cases for non-infringement of copyright and related right consistent with relevant legal documents, appropriate with international integration requirements and economic, cultural and social conditions in Vietnam? Are there still any problems or inadequacies of such regulations?*

Research hypothesis 4: Vietnam's legal regulations on the exceptional cases for non-infringement of copyright and related right are consistent with international integration requirements and economic, cultural and social conditions in Vietnam. However, some regulations lack of clearness, inconsistency with relevant legal documents. Besides, some provisions are difficult to determine so specific instructions are needed to apply uniformly in practice.

Research question 5: *What is the basis, scope of application, mechanism to ensure implementation and impact of the regulations on exceptional cases for non-infringement of copyright for the disabled?*

Research hypothesis 5: The regulations on exceptional cases for non-infringement of copyright for the disabled is designed to ensure an adequate and balanced level of intellectual property right protection, ensure full and serious implementation of Vietnam's international commitments on intellectual property right protection. They are based on WIPO's Model Law on copyright and domestic laws of some countries. However, the mechanism to ensure the implementation of these regulations as well as the impact of the regulations on relevant entities need to be researched and specifically determined.

Research question 6: *Does the Vietnam's current legal regulations on the cases that copyright and related right can be used without permission but paying royalties meet practical requirements? What problems and shortcomings still exist? What causes limitations in the practical implementation of those regulations?*

Research hypothesis 6: The current legal regulations on the cases that copyright and related right can be used without permission but paying royalties have basically met the requirements of practice, but there are still some limits and problems that need to be improved.

Research question 7: *What is the orientation for copyright and related right protection in Vietnam in the coming time?*

Research hypothesis 7: The copyright and related right protection in Vietnam in the coming time will be built on the basis of ensuring an adequate and balanced level of copyright and related right protection; ensure full and serious implementation of Vietnam's international commitments on copyright and related right protection; ensure the goal of non-discrimination and the consistency, feasibility and ease of application of the legal system.

Research question 8: *What are the solutions to improve Vietnamese laws on limitations to copyright and related right? Should Vietnam apply the principles of fair use doctrine in regulations on limitations to copyright and related right?*

Research hypothesis 8: Vietnam needs to synchronously carry out the solutions (i) in terms of legislation to continue perfecting regulations on limitations to copyright and related right in the Intellectual Property Law, legal provisions in related fields, and other legal documents that are complementary to legal enforcement; (ii) in terms of guiding documents such as Decree and Circular; (iii) in terms of law implementation. Vietnam should apply the principles of fair use doctrine in regulations on limitations to copyright and related right.

CHAPTER 1. THEORETICAL ISSUES OF THE LIMITATIONS TO COPYRIGHT AND RELATED RIGHT AND LAWS ON LIMITATIONS TO COPYRIGHT AND RELATED RIGHT

1.1. General overview of the copyright and related right

1.1.1. Concept of copyright and related right

1.1.1.1. Concept of copyright

1.1.1.2. Concept of related right

1.1.2. Features of copyright and related right

- Copyright and related right protect the expression of an idea, not the creative idea.
- Copyright and related right are protected automatically.
- Copyright and related right must have originality.

1.2. Theories on limitations to copyright and related right

1.2.1. Concept of limitations to copyright and related right

In this Thesis, limitations to copyright and related right are approached in a narrow sense, including (i) cases which copyright and related right can be used without asking for permission and paying royalties – exceptional cases for non-infringement of copyright and related right and (ii) cases which copyright and related right can be used without asking for permission but paying royalties.

1.2.2. Characteristics of limitations to copyright and related right

Firstly, the objects which are limited are the protected economic rights of the copyright and related

right holders as prescribed by laws.

Secondly, the subjects whose rights are limited are the owners of copyright and related right.

Thirdly, the subjects who enjoy benefits from the limitations to copyright and related right are organizations or individuals meeting certain requirements as prescribed by laws.

Fourthly, the purposes of the limitations to copyright and related right are to restrict the exclusive rights of copyright and related right owners, to facilitate public access to creative products, to balance the interests of creators and others, and to promote cultural and social development.

1.2.3. Theoretical basis for limitations to copyright and related right

1.2.3.1. Perspectives on limitations to rights in intellectual property philosophy

Philosophical perspectives by J. Locke and Georg Wilhelm Friedrich Hegel indicate that ownership rights come with corresponding obligations according to societal needs and rights and obligations are inherently interlinked. Rights must be accompanied by the fulfillment of obligations to be enjoyed.

1.2.3.2. Some theories on limitations to intellectual property right

- * Interest Balance Theory
- * Exhaustion Doctrine
- * Fair Dealing Doctrine
- * Fair Use Doctrine

1.2.3.3. Limitations to copyright and related right ensure

fundamental human rights

1.3. Laws on limitations to copyright and related right

1.3.1. Concept, content and structure of laws on limitations to copyright and related right

- * Concept of laws on limitations to copyright and related right

- * Content of laws on limitations to copyright and related right

- * Structure of laws on limitations to copyright and related right

1.3.2. Development of provisions on limitations to copyright and related right in international treaties to which Vietnam is a member

1.3.2.1. Provisions in international treaties managed by WIPO on limitations to copyright and related right

- * Berne Convention 1886 on limitations to copyright

- * Rome Convention 1961 on limitations to related right

- * Geneva Convention 1971 on limitations to related right

- * Brussels Convention 1974 on limitations to related right

- * WCT Treaty 1996 on limitations to copyright

- * WPPT Treaty 1996 on limitations to related right

- * Marrakesh Treaty 2013 on limitations to copyright

1.3.3.2. Provisions in other international treaties on limitations to copyright and related right

- * TRIPs Agreement 1994 on limitations to

copyright and related right

** CPTPP Agreement 2018 on limitations to copyright and related right*

** EVFTA Agreement 2019 on limitations to copyright and related right*

CONCLUSION OF CHAPTER 1

Chapter 1 of the Thesis analyzes theoretical issues concerning limitations to copyright and related right and the law governing these limitations. In fact, the Thesis presents various perspectives on copyright and related right, showing the limits in previous studies' approaches and establishing a concept suitable for the Thesis's approach to limitations to copyright and related right. The chapter also analyzes three essential characteristics of copyright and related right protection compared with the protection of other intellectual property rights as well as showing the relationship between copyright and related right protection. Furthermore, the Thesis creates and approaches a narrow concept of limitations to copyright and related right which is the restrictions of economic rights, including exceptional cases for non-infringement of copyright and related right and cases which copyright and related right can be used without asking for permission but paying royalties. In addition, based on the characteristics of copyright and related right protection, the Thesis analyzes four characteristics of limitations to copyright and related right regarding the objects which are limited, the subjects whose rights are limited, the subjects who enjoy benefits from the limitations, and the purposes of the limitations. In addition, the Thesis provides an in-depth

analysis of the theoretical foundation of regulations on limitations to copyright and related right through philosophical perspectives on intellectual property, some basic theories on limitations to intellectual property right and copyright, related right and fundamental human rights, which are the foundation to make laws and deal with practical disputes. Moreover, Chapter 1 presents the concept and content of provisions on limitations to copyright, related right, examines models of such provisions including “closed,” “open,” and hybrid approaches, discussing each approach’s advantages and disadvantages. Lastly, the Thesis analyzes the development of provisions on limitations to copyright and related right in international treaties which Vietnam is a member. Accordingly, these provisions tend to expand certain limitations to ensure a balance of interests, suit for scientific and technological advancements, and adhere to the three-step test principle.

**CHAPTER 2. CURRENT LEGAL PROVISIONS AND
PRACTICAL IMPLEMENTATION OF LEGAL
PROVISIONS ON LIMITATIONS TO COPYRIGHT
AND RELATED RIGHT IN VIETNAM**

2.1. Current legal provisions and practical implementation of general conditions for applying limitations to copyright and related right

2.1.1. Permissible objects of use

2.1.1.1. Used objects must be published

2.1.1.2. Certain objects are not applied for limitations to copyright

2.1.2. Use must fall within the cases prescribed by laws

2.1.3. Use must ensure the rights of copyright and related right holders

2.1.3.1. The use must not conflict with the normal exploitation of the used objects or unreasonably harm the legitimate interests of the right holders

2.1.3.2. The users must provide information on the author's name and the source of the used objects

2.2. Current legal provisions and practical implementation of provisions on exceptional cases for non-infringement of copyright and related right

2.2.1. Exceptional cases for non-infringement of copyright

2.2.1.1. Exceptional cases for non-infringement of copyright for reproduction right

2.2.1.2. Exceptional cases for non-infringement of copyright in teaching, public services and library activities

2.2.1.3. Exceptional cases for non-infringement of copyright for reasonable quotation

2.2.1.4. Exceptional cases for non-infringement of copyright in media and communication activities

2.2.1.5. Exceptional case for non-infringement of copyright for importing copies of others' works

2.2.1.6. Exceptional cases for non-infringement of copyright for the disabled

2.2.2. Exceptional cases for non-infringement of related right

2.2.2.1. Exceptional cases for non-infringement of related right for performance record

2.2.2.2. Exceptional cases for non-infringement of related right for reproduction right

2.2.3.3. Exceptional cases for non-infringement of related right for reasonable quotation

2.3. Current legal provisions and practical implementation of provisions on cases which copyright and related right can be used without asking for permission but paying royalties

CONCLUSION OF CHAPTER 2

Chapter 2 of the Thesis provides a comprehensive analysis of the current legal provisions and practical implementation provisions on limitations to copyright and related right in Vietnam. Actually, the chapter examines and evaluates current laws and practical applications concerning the general conditions required to apply limitations to copyright and related right which includes the permissible objects, the need for the use to fall within the cases prescribed by laws and the requirements to

ensure the legal rights of copyright and related right holders. In addition, the Thesis explains the basis, advantages and disadvantages of current laws and the difficulties, challenges in applying exceptional cases for non-infringement of copyright and related right in Vietnam including exceptional cases for non-infringement of copyright for reproduction right; in teaching, public services and library activities; reasonable quotation; in media and communication activities; act of importing copies of others' works; exceptional cases for non-infringement of copyright for the disabled; exceptional cases for non-infringement of related right for performance record; reproduction right and reasonable quotation. Moreover, Chapter 2 also addresses the current legal provisions and practical implementation provisions on cases which copyright and related right can be used without asking for permission but paying royalties in accordance with Article 26 and Article 33 of Intellectual Property Law. Thus, it reveals that the provisions on limitations to copyright and related right are primarily based on a closed-list model, aligning with Vietnam's legislative tradition and socio-economic development. Besides, Vietnamese law is also being perfected in the direction of harmonizing with international standards, complying with commitments in international treaties to which Vietnam is a member toward expanding some limitations to copyright and related right to meet people's needs for information access, cultural enjoyment, learning and scientific research. However, some provisions remain vague and inconsistent. These regulations also have

several technical errors, lack of feasibility, lack of referenced regulations to apply in other fields as well as fail to fully meet the demands of advancing information technology and scientific development. They, therefore, need to be improved in the coming time.

**CHAPTER 3: ORIENTATIONS AND
RECOMMENDATIONS TO IMPROVE LAWS ON
LIMITATIONS TO COPYRIGHT AND RELATED
RIGHT AND THE EFFECTIVENESS OF THEIR
APPLICATION**

3.1. Orientations to improve the laws on limitations to copyright and related right and enhance the effectiveness of their application in Vietnam

3.2. Recommendations to improve Vietnamese laws on limitation to copyright and related right

3.2.1. Improving provisions on general conditions for applying limitations to copyright and related right

3.2.2. Improving provisions on exceptional cases for non-infringement of copyright and related right

3.2.2.1. Improving provisions on exceptional cases for non-infringement of copyright

3.2.2.2. Improving provisions on exceptional cases for non-infringement of related copyright

3.2.3. Improving provisions on cases which copyright and related right can be used without permission but paying royalties

3.3. Solutions to enhance the effectiveness of legal application of limitations to copyright and related right

CONCLUSION OF CHAPTER 3

Based on the assessment of the current legal status and practical application of laws on limitations to copyright and related right, Chapter 3 of the Thesis analyzed the policies and guidelines of the Party and the State on the general orientations for perfecting the laws and improving the effectiveness of applying the laws on

limitations to copyright and related right in Vietnam, which are (i) ensuring the adequacy and balance in the protection of copyright and related right; (ii) ensuring the full and serious implementation of Vietnam's international commitments on the protection of copyright and related right in the integration process; (iii) ensuring the goals of non-discrimination, opening up equal opportunities for disadvantaged groups in society to participate in activities to integrate into community life; (iv) ensuring the consistency of the legal system, feasibility and ease of application in practice. Thus, the Thesis has proposed solutions to improve Vietnamese laws on limitations to copyright and related right, including five recommendations about general conditions for applying limitations to copyright and related right; twelve recommendations about exceptional cases for non-infringement of copyright; five recommendations about exceptional cases for non-infringement of related right and five recommendations about cases which copyright and related right can be used without permission but paying royalties. In addition, the Thesis also proposes nine solutions to improve the effectiveness of applying the laws on limitations to copyright and related right.

CONCLUSION

The Thesis is the first comprehensive and in-depth research work on limitations to copyright and related right in Vietnam. In terms of theory, by presenting the concepts and characteristics of copyright and related right, the Thesis has built the concept and analyzed four characteristics of limitations to copyright and related right, which include characteristics about the objects, the subjects of the limitations, the subjects that benefits from the limitations and the purposes of the limitations. In addition, the Thesis has analyzed the theoretical basis for the regulations on limitations to copyright and related right. Besides, the Thesis also presents the concept, content, and structure of legal regulations on limitations to copyright and related right and analyzes the development of regulations on limitations to copyright and related right in international treaties of which Vietnam is a member. In particular, the Thesis has systematized the provisions of current Vietnamese laws on limitations to copyright and related right as well as analyzed in depth the basis and development history of such provisions. Thereby, it can be seen that the provisions of current Vietnamese laws have overcome many difficulties and problems arising in practice as well as met the requirements set out in the international treaties to which Vietnam is a member or intends to participate in the near future. This demonstrates Vietnam's proactiveness and positivity in international integration, improving the effectiveness of copyright and related right protection. However, the provisions of current Vietnamese laws on limitations to copyright and related

right still reveal shortcomings, do not ensure clarity, feasibility, consistency, and they sometimes are not compatible with related laws, which leads to difficulties and obstacles in the course of law application. On the basis of pointing out the causes of the shortcomings and recognizing the orientations of the Party and the State, the Thesis has proposed many valuable recommendations contributing to perfecting the laws on general conditions for applying limitations to copyright and related right, exceptional cases for non-infringement of copyright and related right as well as cases which copyright and related right can be used without permission but paying royalties. Furthermore, the Thesis also proposes a number of solutions to improve the effectiveness of applying regulations on limitations to copyright and related right such as raising awareness and legal compliance of individuals and organizations in society; building a specialized website on issues related to provisions on limitations to copyright and related right; unifying the usage standards for users; improving the operational efficiency of copyright and related right representative organizations and strengthening inspection, supervision as well as expanding international cooperation.

SCIENTIFIC ARTICLES RELATED TO THE THESIS

I. Published scientific articles directly related to the Thesis

No.	Article Title	Journal	Publication Date
1	Copyright infringements in Learners' study and research activities at higher education institutions from the practice of Hanoi Law University and some solutions	Hanoi Law Review	No.4, April 2021
2	Perfecting Vietnamese Laws on copyright exceptions in the industrial revolution 4.0	Journal of Science – Hanoi Open University	No.90, April 2022
3	Copyright exceptions in the Intellectual Property Law	Democracy and Law	No.5 (380), May 2023
4	Laws on non-infringement exceptions to	Democracy and Law	No.6 (406), June 2024

	copyright in library activities – Current situations and solutions		
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II. Other Published Scientific Articles Related

No.	Article Title	Journal	Publication Date
1	Protection of copyright in e-commerce – Current situations and solutions	Democracy and Law	Special edition, July 2020
2	The need to set up a specialized Court of Intellectual Property in Vietnam	Democracy and Law	Special edition, July 2020
3	Commercialization of intellectual property at universities in the social sciences – Current situations and solutions	Democracy and Law	No. 7 (364), July 2022
4	Protection of Copyright in E-commerce under International and Vietnamese Law	Democracy and Law	Special edition on Intellectual Property Protection in E-

			commerce, 2023
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